

the whole thirty-five million nine hundred and eighty-seven thousand three hundred and fifteen pounds eleven shillings and eightpence.

40 & 41 Vict.
c. 2.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March one thousand nine hundred and twelve, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those bills.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding five pounds per cent. per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

Short title.

4. This Act may be cited as the Consolidated Fund (No. 1) Act, 1911.

CHAPTER 2.

An Act to amend the Law relating to Inland Revenue (including Excise) and the National Debt, and for other purposes connected with Finance. [31st March 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: . †

PART I.

DUTIES ON LAND VALUES.

Avoidance
of contracts
for payment
of increment
value duty
by transferee
or lessee.

1. Any contract made after the passing of this Act between a transferor and transferee or a lessor and lessee for the payment by the transferee or lessee, as the case may be, of increment value duty, or any expenses incurred in connexion with the payment or assessment of the duty, or for the repayment or re-imbursement by the transferee or lessee to the transferor or lessor in any manner of any payments made by the transferor or lessor in respect of that duty or any such expenses, shall be void.

Amendment
of s. 2 (3) of
the princi-
pal Act.

2. Subsection (3) of section two of the principal Act (which relates to the definition of increment value) shall apply to the case of any transfer on sale of the fee simple of the land or of any interest in the land which took place twenty years or more before the thirtieth day of April nineteen hundred and nine,

and which was a transfer to the person who is the owner of the land or any interest in the land at the time when an application is made under that provision, as it applies to the case of a transfer on sale which took place within twenty years before the thirtieth day of April, nineteen hundred and nine.

In the cases where the original site value has been finally settled before the passing of this Act, an application may be made, notwithstanding anything in subsection (3) of section two of the principal Act, under that subsection, for the purpose of giving effect to this provision within three months after the date of the passing of this Act, and the Commissioners shall, in such a case, alter the original site value as finally settled in such manner (if any) as may be necessary to give effect to the amendment made by this provision, and, in cases where any amount has been paid on account of duty, the Commissioners shall make such repayment as may be necessary to adjust the amount paid to any alteration of value made in pursuance of this provision.

3.—(1) It is hereby declared that in relation to a lease which has determined the person in whom the lessor's interest was vested immediately before the expiration of the term for which the lease was granted, or, if the lease has determined before that time, immediately before the transaction or event in consequence of which the lease has determined, is the lessor for the purpose of section fifteen of the Finance (1909–10) Act, 1910 (in this Act referred to as the principal Act), and is the person to whom any benefit accrues from or by reason of the determination of the lease for the purpose of the other provisions of that Act relating to reversion duty.

Explanation
and amend-
ment of law
as to re-
version duty.

10 Edw. 7, c. 8.

(2) Where, whether before or after the passing of this Act, a lease of any land determines on the vesting of the lessor's interest and the lessee's interest in the same person before the expiration of the term for which the lease was granted, the amount of the reversion duty (if any) payable shall not be the full duty, but such an amount as would, with compound interest at the rate of four per centum per annum for the residue of the term for which the lease was granted, produce the amount of the full duty.

For the purposes of this provision the full duty means the duty (if any) which would have become payable if the lease had not determined until the expiration of the term for which it was granted, and, if the total value of the land were at that time the same, as it is when the lease actually determines.

(3) No reversion duty shall be charged on the determination of any lease of land where the lease is determined in pursuance of an agreement between the lessor and the lessee for the acquisition by the lessee of the lessor's interest, if at the time of the determination of the lease—

- (a) the lease has at least fifty years of its term to run; and
- (b) the total value of the land does not exceed five hundred pounds.

(4) Where a lease of any land held upon trust for any body of persons is determined before the expiration of the term of the lease by the surrender thereof to the lessor upon the terms that he shall grant to those persons severally leases of various plots of land representing in the aggregate the whole of the land comprised in the original lease, for a term in each case equal to the unexpired term of the residue of the original lease, and at rents amounting in the aggregate to but not exceeding the rent reserved by the original lease, no reversion duty shall be payable on the determination of the lease :

Provided that the lessor shall, in any case to which this provision applies, deliver an account under section fifteen of the principal Act in the same manner as if reversion duty were payable on the determination of the lease.

(5) Subsection (3) of section fourteen of the principal Act shall cease to have effect and shall be deemed never to have had effect.

Amendment
of s. 16 (2) (b)
of the principal
Act.

4. Twenty years shall be substituted for ten years as the limit of time for taking expenditure into account for the purposes of paragraph (b) of subsection (2) of section sixteen of the principal Act.

Amendment
of s. 26 (1)
of the principal
Act.

5. Notwithstanding anything in subsection (1) of section twenty-six of the principal Act, the Commissioners may, on the request of the owner of any pieces of land which are contiguous, and which do not in the aggregate exceed one hundred acres in extent, value those pieces of land together for the purposes of that Act, although those pieces of land are under separate occupation, if they are satisfied that in the special circumstances of the case it is equitable to do so ; and any such valuation may be made under this provision, although any of the pieces of land have been valued before the passing of this Act, if the request for the valuation under this provision is made by the owner of the land within three months after the passing of this Act, and in that case any valuation previously made shall be of no effect.

Saving in
respect of the
payment of
increment
value duty
by certain
statutory
companies.

6. Notwithstanding anything contained in the principal Act, where under the provisions of any lease or agreement any statutory company are required to pay over any part of the increment value of any land to His Majesty, or to any person on behalf of His Majesty, or any Department of Government, that part of the increment value shall, for the purposes of the provisions of the said Act as to the collection of increment value duty, be treated as increment value arising in respect of land held by His Majesty.

Right of Com-
missioners
of Inland
Revenue to
appeal against
decision of
referee.

7. It is hereby declared that the Commissioners of Inland Revenue, if dissatisfied with the decision of a referee, have under subsection (4) of section thirty-three of the principal Act a right of appeal to the High Court against the decision as persons aggrieved within the meaning of that provision.

PART II.

EXCISE.

- **8.**—(1) The annual value of any premises for the purpose of the duty on any excise licence charged by reference to annual value shall be in England and Scotland—

Annual value
for the purpose
of excise
licences.

- (a) the inhabited house duty value if there is such a value applicable; and
- (b) in a case where there is no inhabited house duty value applicable, the income tax value if there is such a value applicable; and
- (c) if there is neither an inhabited house duty value nor an income tax value applicable, the annual value as determined by the Commissioners of Customs and Excise in accordance with the Acts relating to excise, but having regard in all cases to any decrease in the annual value resulting from any increase under the provisions of the principal Act in the licence duty.

For the purposes of this provision the inhabited house duty value means the value as adopted for the purposes of inhabited house duty, and the income tax value means the value as adopted for the purposes of income tax under Schedule A. of the Income Tax Act, 1853, and the inhabited house duty value or the income tax value, as the case may be, shall be deemed to be applicable if the premises to which a value is attached for the purpose of those duties or either of them correspond with the premises the annual value of which is required for the purpose of the charge of the duty on the licence, except in cases where it is shown to the Commissioners of Customs and Excise that in the determination of the inhabited house duty value or income tax value, as the case may be, no regard has been had to any decrease in the annual value resulting from any increase under the provisions of the principal Act as amended by this Act in the licence duty.

16 & 17 Vict.
c. 34.

(2) In Ireland the annual value of any premises for the purpose of the duty on any excise licence charged by reference to annual value shall be determined by the Commissioners of Customs and Excise in accordance with the Acts relating to Excise, but subject to the provisions of subsection (7) of section forty-three of the Inland Revenue Act, 1880, and having regard in all cases to any decrease in the annual value resulting from any increase under the provisions of the principal Act as amended by this Act in the licence duty.

43 & 44 Vict.
c. 20.

(3) The foregoing provisions of this section shall be substituted for subsection (1) of section forty-four of the principal Act, and that subsection shall cease to have effect.

(4) This section shall have effect as respects licences granted after the passing of the principal Act and in force at the time of the passing of this Act; and if, in respect of the period for which any such licence was granted, any sum has been paid as duty on the licence in excess of the sum which would have been

paid if this section had been in force at the date of the grant of the licence, the excess shall be repaid.

Recovery of instalments of unpaid duty on licence in force at time of passing of Act.

9. Where, since the date of the passing of the principal Act, any licence on which duty is charged under Part II. of that Act and which is in force at the time of the passing of this Act has been granted on payment of a portion only of the duty, whether in pursuance of subsection (3) of section forty-nine of the principal Act or not, any portion of the duty not paid may, without prejudice to the operation of the said subsection in cases where that subsection is applicable, be recovered from the licence-holder as a debt due to His Majesty.

Section 4 of 1 & 2 Will. 4. c. 32 not to apply to live game birds in certain cases.

10. So much of section four of the Game Act, 1831, as makes it an offence for any person to buy or sell or have in his house, possession, or control game birds after the dates therein specified, shall not apply where the game is live game, and the person buying, selling, or having in his house, possession, or control the game, is keeping or intending to keep the game solely for the purpose of breeding or for sale alive, and either is licensed at the time to deal in game, or is a holder of a certificate or licence to kill game in force at the time.

The amendments made by this section shall have effect in the Game Act, 1831, as applied by any subsequent enactment as well as in that Act as originally enacted.

PART III.

INCOME TAX.

Assessment and recovery of part of supertax from wife in certain cases.

11.—(1) Where a husband is required under subsection (2) of section seventy-two of the principal Act, to make a return of his total income from all sources for the purpose of supertax and part of that total income is the income of his wife, the Special Commissioners may, if for any reason they consider that they are unable to obtain a satisfactory return of the wife's income from the husband, require the wife to make a return of her income, and in that case the wife shall be under the like obligation to make a return under the said section as if she were not married, and the husband shall be relieved from any obligation to make such a return as respects the income of the wife.

(2) Where supertax is charged in a case where the wife has been required to make a return under the foregoing provision, such part of the total sum payable in respect of the supertax as bears the same proportion to that total sum as the wife's income bears to the total income shall be assessed on and recoverable from the wife in lieu of the husband.

(3) This section shall have effect with respect to the supertax charged for the year beginning the sixth day of April nineteen hundred and nine and for any subsequent year as if it had been contained in the principal Act, and the provisions of that Act with regard to the assessment and collection of super-

tax, and the penalties for failure to make a return, shall apply accordingly.

12. The proviso to subsection (1) of section seventy-one of the principal Act (which gives the right to persons resident abroad to claim relief, exemption, or abatement from income tax in certain cases) shall apply to a widow who is in receipt of a pension chargeable with income tax and granted to her in consideration of the employment of her late husband in the service of the Crown as it applies to the persons described in the proviso.

Extension of the right to claim exemptions, &c. from income tax in certain cases to widows resident abroad who are in receipt of pensions.

13. When the securities of a Foreign State or British Possession are held under any trust, and the person who is the beneficiary in possession under the trust is the sole beneficiary in possession and can, by means either of the revocation of the trust or of the exercise of any powers under the trust, call upon the trustees at any time to transfer the securities to him absolutely free from any trust, that person shall be deemed to be the person owning the securities for the purpose of subsection (2) of section seventy-one of the principal Act (which exempts from income tax under certain circumstances the interest and dividends of the securities of a foreign State or British Possession).

Amendment as to ownership of securities for the purpose of s. 71 (2) of the principal Act.

14.—(1) Where in any income tax year any half-yearly or quarterly payments have been made on account of any dividend, interest, or other annual profits or gains, previously to the passing of the Act imposing the tax for that year, and income tax has not been charged thereon or deducted therefrom, or has not been charged thereon or deducted therefrom at the rate ultimately charged for the said year, the amount not so charged or deducted shall be charged under Schedule D. in respect of those payments as profits or gains not charged by virtue of any other Schedule, in accordance with the provisions contained in the sixth case of Schedule D. in section one hundred of the Income Tax Act, 1842, and the agents entrusted with the payment of the dividends, interest, or other annual profits or gains shall furnish a list containing the names and addresses of the persons to whom payments have been made, and the amount of those payments, to the Commissioners of Inland Revenue, upon a requisition made by the Commissioners in that behalf.

Provisions as to payment of income tax in any year previously to the passing of the Act imposing the tax for that year.

5 & 6 Vict. c. 35.

(2) Any person liable to pay any rent, interest, or annuity, or to make any other annual payment, shall be authorised to make any deduction on account of income tax for any income tax year which he has failed to make previously to the passing of the Act imposing the tax for that year, or to make up any deficiency in any such deduction which has been so made on the occasion of the next payment of the rent, interest, or annuity, or making of the other annual payment after the passing of the Act so imposing the tax, in addition to any other deduction which he may be by law authorised to make, and shall also be

entitled, if there is no future payment from which the deduction may be made, to recover the sum which might have been deducted as if it were a debt due from the person as against whom the deduction could originally have been made if the Act imposing income tax for the year had been in force.

(3) In this section the expression "income tax year" means the year beginning the sixth day of April.

PART IV.

STAMPS.

Exemption in certain cases of leases from increased stamp duty so far as consideration consists of a capital sum.

15. Where the consideration, or any part of the consideration, for any lease or tack consists of any money, stock, or security (other than rent) the amount or value of which does not exceed five hundred pounds, and the instrument contains a statement certifying that the transaction thereby effected does not form part of a larger transaction or of a series of transactions in respect of which the amount or value or the aggregate amount or value of the consideration other than rent exceeds five hundred pounds, section seventy-five of the principal Act shall not apply to the duty chargeable in respect of the consideration, or part thereof, which so consists of any money, stock, or security other than rent, but duty shall be charged in respect thereof as if that Act had not passed:

Provided that this section shall not apply in any case where part of the consideration for any lease or tack consists of rent, and that rent exceeds the sum of twenty pounds a year.

PART V.

PROVISIONS AS TO PAYMENTS FOR LOCAL AUTHORITIES.

Repeal of s. 91 of 10 Edw. 7. c. 5.

16. Section ninety-one of the principal Act (which provides for the payment of half the proceeds of the duties on land values for the benefit of local authorities) shall be suspended in its operation as from the date of the principal Act until Parliament shall otherwise determine, but not beyond the thirty-first day of March, nineteen hundred and fourteen.

Payment to Local Taxation Account of fixed sum in respect of the local taxation (Customs and Excise) duties. 7 Edw. 7. c. 13.

17.—(1) The sum to be paid in respect of the local taxation (Customs and Excise) duties into the Local Taxation Account, and the Local Taxation (Scotland) Account, and the Local Taxation (Ireland) Account respectively, under subsection (2) of section seventeen of the Finance Act, 1907, shall, in the current and every subsequent financial year until Parliament otherwise determines, instead of being a sum equal to the amount which would have been paid as the proceeds of those duties if that Act had not passed, be a sum equal to the amount of the English, Scottish, and Irish shares respectively of the proceeds of those duties during the financial year ending the thirty-first day of March nineteen hundred and nine.

(2) There shall in addition be paid into each of the said Local Taxation Accounts during the current financial year out

of the Consolidated Fund or the growing produce thereof, any amount by which the sum payable into that Account in respect of the proceeds of the local taxation (Customs and Excise) duties in the financial year ending the thirty-first day of March nineteen hundred and ten fell short of the sum which would have been so payable if this Act had been in force during that year, and any additional amount so paid into any Local Taxation Account shall be distributed and dealt with as if it were an addition to the sum paid into that account in respect of the local taxation (Customs and Excise) duties.

18.—(1) So much of subsection (2) of section eighty-eight of the principal Act as provides for the payment of a part of the proceeds of the duties on licences for motor cars in England and Wales into the Exchequer, and for the payment out of the Consolidated Fund to the council of a county or county borough of any deficiency in the proceeds of those duties, shall extend to the proceeds of the duties on all carriage licences (whether licences for motor cars or not), and that provision shall be construed accordingly.

Extension
of s. 88 of
10 Edw. 7. c. 8
to all carriage
licences.

(2) Notwithstanding anything in section seventeen of the Finance Act, 1907, or in subsection (1) of section eighty-eight of the principal Act, the sum to be paid out of the Consolidated Fund into the Local Taxation (Scotland) Account in pursuance of subsection (2) of section seventeen of the Finance Act, 1907, in respect of the proceeds of the duties on carriage licences, shall be the amount of the proceeds of those duties during the year ending the thirty-first day of March nineteen hundred and nine.

(3) Section ninety of the principal Act (which relates to the payment out of the Consolidated Fund of a sum equal to the net proceeds of the duties on motor spirit and motor car licences as the road improvement grant) shall be construed as if a reference to the duties on carriage licences were substituted in that section for the references to the duties on licences for motor cars which were affected by that Act and to the duties payable on licences for motor cars.

(4) In this section, the expression "duties on carriage licences" means the duties on all licences for carriages, including any duty charged under subsection (1) of section eight of the Locomotives on Highways Act, 1896, and any duty charged under section eighty-six of the principal Act in respect of motor cars.

59 & 60 Vict.
c. 36.

PART VI.

NATIONAL DEBT.

19. For the purpose of calculating the old sinking fund for the financial year ending the thirty-first day of March nineteen hundred and eleven sections four and five of the Sinking Fund Act, 1875, shall have effect as if the income and expenditure therein referred to were the aggregate income and aggregate

Provision as
to old sinking
fund for cur-
rent financial
year.
38 & 39 Vict.
c. 45.

expenditure respectively for the two financial years ending the thirty-first day of March nineteen hundred and ten and the thirty-first day of March nineteen hundred and eleven.

PART VII.

MISCELLANEOUS.

Repeal, construction,
and short
title.

20.—(1) The enactments specified in the Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(2) Part I. of this Act shall be construed together with Part I. of the principal Act.

Part. II. of this Act shall be construed together with the Acts which relate to duties of Excise and the management of those duties.

5 & 6 Vict.
c. 35.
16 & 17 Vict.
c. 34.
54 & 55 Vict.
c. 39.

Part III. of this Act shall be construed together with the Income Tax Acts, 1842 and 1853, and any other enactments relating to income tax.

Part IV. of this Act shall be construed together with the Stamp Act, 1891.

(3) This Act may be cited as the Revenue Act, 1911.

SCHEDULE.

Section 20.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
10 Edw. 7. c. 8.	Finance (1909-10) Act, 1910.	Section fourteen, subsection (3); section forty-four, subsection (1); the words "and on licences for motor cars" in subsection (1) of section eighty-eight; subsection (3) of section eighty-eight; and section ninety-one.

CHAPTER 3.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[28th April 1911.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be con-